

days after service on defendant with written notice that judgment was taken.

Plaintiff filed a proof of service on 5/22/24, of which the court takes judicial notice, reflecting that a process server completed personal service on 5/22/24. The person who was served identified herself as Lynda J. Matthews, and the service took place at the same address the Defendant used on this Motion. The service was done by a registered process server, which raises a presumption of valid service. See *Floveyor Internat., Ltd. v. Superior Court* (1997) 59 Cal.App.4th 789, 795 (the filing of a proof of service creates a rebuttable presumption that the service was proper).

Defendant, in her declaration claims she was not notified of the Default Judgment in the instant matter, and also that she was not notified of an OSC hearing scheduled on 7/31/25. She does, however, concede that she received notice of a CMC that was scheduled for 11/17/25, for which she appeared in court.

The court takes judicial notice of the written notice mailed to Defendant from the Court Clerk's Office, on 7/31/25. That notice reflected the CMC date of 11/17/25, the one of which Defendant was aware. The mailing address is the same as that where personal service of process on the Defendant was completed which, the court notes again, is the same address as that used by Defendant for this Motion.

The court does not find Defendant's position to be credible and does not find that the presumption of proper service has been rebutted.

**Disposition**

Defendant's Motion is Denied.

**If Plaintiff does not appear, then the court will file the Order.**

6. 9:00 AM CASE NUMBER: L24-04232

CASE NAME: CITIBANK N.A. VS. GINO MAYNETTO

\*HEARING ON MOTION IN RE: TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT (CONTINUED FROM 1/27/26)

FILED BY: CITIBANK N.A.

**\*TENTATIVE RULING:\***

Background

Plaintiff filed a motion on 1/7/26, to vacate dismissal and enter judgment pursuant to stipulation. The Motion was originally scheduled for 1/27/26 and was unopposed. However, the court continued the Motion, apparently to 3/17/26, per the Minutes from

1/27/26, because of insufficient notice to the Defendant.

The court ordered the Plaintiff to file the order, as well as to notify Defendant of the new date.

There is no record of this matter being called on 3/17/26, and it is unclear why it was calendared for 4/7/26 instead.

Either way, Plaintiff did not file the Order from the 1/27/26 hearing, and did not notify Defendant of either the 3/17/26 date, or the 4/7/26 date.

#### Disposition

This Motion will be continued to 6/23/26, 9am.

Plaintiff to file the Order, and to provide notice to the Defendant.

**7. 9:00 AM CASE NUMBER: L25-00091**

**CASE NAME: WELLS FARGO BANK, NA VS. MARLIN THROWER**

**\*HEARING ON MOTION FOR DISCOVERY NOTICE OF MOTION FOR AN ORDER DEEMING TRUTH OF THE MATTERS; DEC OF LOPEZ; PROPOSED ORDER**

**FILED BY: WELLS FARGO BANK, NA**

**\*TENTATIVE RULING:\***

#### Background

Plaintiff filed, on 12/18/25, Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion), along with a Declaration of Edgar Lopez (filed 12/18/25).

Plaintiff attached the particular facts at issue in their Exhibit 1 to their Declaration.

The Motion is unopposed.

Plaintiff served Defendant by mail with the Motion and notice of the hearing, on 12/18/25.

#### Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. §